

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, MAY 26, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**AVILA v. SANCHEZ, ET AL.
Case No. CU25-02275**

Motion to Compel Further Responses to Form Interrogatories and to Compel Answer or Production

TENTATIVE RULING

Defendants' motion to compel further responses to form interrogatory 17.1 and to compel production of handwriting exemplars at deposition is denied without prejudice.

Defendants have failed to file a separate statement "that provides all the information necessary to understand each discovery request and all the responses to it that are at issue" and is "full and complete so that no person is required to review any other document in order to determine the full request and the full response." (Cal. Rules of Court, rule 3.1345(c).) A separate statement is required for any motion involving the content of a discovery request or the responses to a request, including motions to compel further responses to interrogatories, to compel answers at a deposition, and to compel the production of documents or tangible things at a deposition. (Cal. Rules of Court, rule 3.1345, subds. (a)(2), (a)(4)-(a)(5).) The court may deny a motion to compel further responses to discovery for a party's failure to file a satisfactory separate statement. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.)

Additionally, Defendants' meet and confer declaration does not "state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented"

(Code Civ. Proc. § 2016.040) and fails to establish that counsel engaged in a “serious effort at negotiation and informal resolution” that amounted to a sufficient “attempt to talk the matter over, compare their views, consult, and deliberate.” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294; *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) Rather than engaging in a meaningful attempt to informally resolve the discovery disputes, defense counsel sent a single meet and confer letter upon receiving responses to form interrogatories from Cross-defendant Serrano and a single meet and confer letter after Cross-defendants refused to provide handwriting exemplars at their deposition. (Decl. of Garfield, ¶¶ 4, 7, 16-20.) Although defense counsel claims to have sent a follow-up email regarding the responses to form interrogatories on March 18, 2026, that email referred only to responses to requests for documents and the failure of Plaintiff to serve responses to form interrogatories. (*Id.* at Exh. E.) Plaintiff apparently served her responses to the form interrogatories on March 18, but there is no indication that Defendants attempted to meet and confer regarding any deficiencies with those responses. (*Id.* at ¶ 4.) After Cross-defendants refused to provide handwriting exemplars during their depositions, defense counsel sent a single meet and confer letter and there is no indication that he ever followed up or attempted to contact opposing counsel in any other way. (*Id.* at ¶¶ 21-22.) The parties have not discussed or deliberated on the discovery dispute.

The parties are directed to actually meet and confer, in person, by telephone or by videoconference, to compare their views, consult and deliberate. If the parties are still unable to informally resolve any part of the dispute, Defendants may file a subsequent motion to compel further responses within 45 days of the date of the hearing or any later date agreed upon by the parties. The motion shall be accompanied by a meet and confer declaration that fully demonstrates “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc. § 2016.040.)

No monetary sanctions are awarded at this time.

EDWARDS, et al. v. FUNG, et al.
Case No. cu25-08969

- (1) Demurrer; and
- (2) (Renewed) Motion by Defendant THETA S.H. FUNG to Compel Discovery

TENTATIVE RULING

On the demurrer:

C.C.P. §430.10(e) authorizes a demurrer to be filed when “The pleading does not state facts sufficient to constitute a cause of action.”

In general, a complaint must contain “charging allegations”—allegations against each defendant charging them with some wrongful act. 1 Edmon & Karnow [Weil & Brown],

Civil Procedure Before Trial (The Rutter Group 2025) §6:85, p. 28 [charging allegations must run against Doe defendants]; §6:123, p. 39 [“ultimate facts”—facts sufficient to state a cause of action must be alleged].

A plaintiff must be a “real party in interest as to the claim being asserted.

First, plaintiff must be the “real party in interest” with respect to the claim sued upon. Except as otherwise provided by statute, “every action must be prosecuted in the name of the real party in interest.” [CCP § 367; see *Dino v. Pelayo* (2006) 145 CA4th 347, 353, 51 CR3d 620, 624, fn. 2 (citing text); *Cloud v. Northrop Grumman Corp.* (1998) 67 CA4th 995, 1004, 79 CR2d 544, 549 (citing text)]

“Real Party in Interest” Defined: Generally, the real party in interest is the person who has the right to sue under the substantive law. It is the person who owns or holds title to the claim or property involved, as opposed to others who may be interested or benefited by the litigation. [*Gantman v. United Pac. Ins. Co.* (1991) 232 CA3d 1560, 1566, 284 CR 188, 191; *Jasmine Networks, Inc. v. Sup.Ct. (Marvell Semiconductor, Inc.)* (2009) 180 CA4th 980, 991, 103 CR3d 426, 433—“while superficially concerned with procedural rules,” CCP § 367 “really calls for a consideration of rights and obligations”]

Real party in interest issues are often discussed in terms of plaintiff's “standing to sue.” [See *Windham at Carmel Mtn. Ranch Ass'n v. Sup.Ct. (Presley)* (2003) 109 CA4th 1162, 1172, 135 CR2d 834, 841; *Blumhorst v. Jewish Family Services of Los Angeles* (2005) 126 CA4th 993, 1001, 24 CR3d 474, 479—person invoking judicial process must have a real interest in the ultimate adjudication, having suffered (or about to suffer) an “injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented”; *Iglesia Evangelica Latina, Inc. v. Southern Pac. Latin American Dist. of Assemblies of God* (2009) 173 CA4th 420, 445, 93 CR3d 75, 94—party must have “some special interest to be served or some particular right to be preserved or protected” (internal quotes omitted)]

This state standing criterion has some “commonalities” with federal Article III standing. [*Limon v. Circle K Stores Inc.* (2022) 84 CA5th 671, 697-700, 300 CR3d 572, 591-593 (using “beneficially interested” test for standing otherwise associated with standing under CCP § 1086 (writs of mandate), i.e., party must have suffered injury that is “(a) concrete and particularized, and (b) actual or imminent, not conjectural or hypothetical”) (internal quotes omitted)]

Standing criteria depends on the specific right, such as a statutory right, being enforced. [See *Limon v. Circle K Stores Inc.*, *supra*, 84 CA5th at 692-693, 300 CR3d at 586-587; and ¶ 2:3.1, 2:39.9 ff.]. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §§2:1-2:2, pp. 1-2.

See also Friendly Village Community Assn., Inc. v. Silva & Hill Constr. Co. (1973) 31 Cal.App.3d 220, 224 ["if the complaint shows that (a plaintiff) is not a real party in interest and therefore lacks "standing" to sue, a "general" demurrer will be sustained"].

Neither KEITH ETHAN YEE ("YEE") nor EDWARD LEOPOLD NOVAK ("NOVAK") appear to have any standing to pursue claims based upon injuries or losses claimed by PEGGY S.K. EDWARDS ("EDWARDS").

The court therefore sustains the demurrer by Defendants THEDA FUNG, RHONDA FUNG and PETER LEW to the entirety of the complaint as to Plaintiffs YEE and NOVAK, without leave to amend.

As to the claims by EDWARDS, most of the asserted causes of action do not state a cause of action against the demurring Defendants (or for that matter, any of the defendants).

The complaint contains some very broad and vague claims that EDWARDS suffered loss or damages, and that all of the Defendants misused her financial accounts; "have taken unconscionable advantage of . . . Edwards, a disabled senior"; that THEDA FUNG failed to distribute the rightful amount owed to EDWARDS from an inheritance from the estate of Ivan Kim, and did not pay back some attorneys fees Edwards had paid in the estate case; and that PETER LEW and RHONDA LEW (FUNG) entered Edwards' apartment for the purpose of committing theft of valuables such as jewelry.

The court finds these allegations insufficiently vague to state any viable cause of action in a general civil case such as the one at present (and some, such as those regarding the inheritance, can only be asserted in the probate court case involving the subject probate estate). Capra v. Capra (2020) 58 Cal.App.5th 1072, 1084 [probate court has in rem jurisdiction over a decedent's assets, and enforcement of a probate court's orders].

A demurrer can be appropriate where the complaint is "uncertain," or, in other words, "ambiguous and unintelligible." C.C.P. section 430.10(f).

[I]n pleading, the essential facts upon which a determination of the controversy depends should be stated with clearness and precision so that nothing is left to surmise. Those recitals, references to, or allegations of material facts which are left to surmise are subject to special demurrer for uncertainty. Ankeny v. Lockheed Missiles & Space Co. (1979) 88 Cal.App.3d 531, 537.

A demurrer for uncertainty can be sustained where the complaint is so bad that the defendant cannot reasonably respond, or cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.

The court also finds these allegations to be uncertain, to serve as an additional basis for sustaining the demurrer as to all causes of action.

The demurrer as to EDWARDS is therefore sustained to the entirety of the complaint, with 30 days leave to EDWARDS to file an amended complaint to state with more specificity any claims against demurring Defendants. This 30 days runs from the date of this hearing.

The court clarifies that EDWARDS cannot be represented in any subsequent filings in this case by any person other than herself, if that person is not a licensed California attorney.

On the renewed motion to compel responses to discovery:

With the court sustaining the demurrer as to all claims by Plaintiffs YEE and NOVAK without leave to amend, the part of the renewed discovery motion seeking to compel from them responses to discovery is rendered moot. However, because moving Defendants propounded the discovery and filed the motion before these plaintiffs' claims were effectively rejected by the demurrer ruling, and because the discovery at issue appeared reasonably calculated to the determination of a motion and/or the subject matter of this action, the court finds they are entitled to sanctions against both YEE and NOVAK under C.C.P. §§2030.290(c), 2031.300(c), and/or 2033.280(c). With half of the discovery at issue in this motion (four of the eight sets of discovery) propounded against NOVAK, a higher amount of sanctions is justified against him. The court therefore imposes sanctions in the amount of \$1,200.00 against EDWARD LEOPOLD NOVAK, and in the amount of \$600.00 against KEITH ETHAN LEE. Those sanctions are due and payable to moving counsel Richard Hurlburt of Legal Assistance to the Elderly within 30 days of service of this order.

With the court's sustaining of the demurrer as to EDWARDS with 30 days leave to amend, the discovery propounded against her is not necessarily rendered moot by that ruling, except for the discovery pertaining to the other named Plaintiffs (YEE and NOVAK). The court therefore grants the renewed discovery motion, and orders EDWARDS to serve, within 30 days of service of this order, full and complete verified responses to all of the form interrogatories, and deems EDWARDS to have admitted requests for admissions 1-8.

The court also imposes sanctions in the amount of \$600.00 against PEGGY S.K. EDWARDS. Those sanctions are due and payable to moving counsel Richard Hurlburt of Legal Assistance to the Elderly within 30 days of service of this order.

**SUNDT CONSTRUCTION, INC. v. NORTHERN CALIFORNIA OFFICERS
COMMUNITY dba PARADISE VALLEY ESTATES
Case No. FCS059237**

GLUMAC's Demurrer to PERKINS's Second Amended Cross-Complaint

TENTATIVE RULING

Cross-Defendant GLUMAC demurs to the causes of action against it within Cross-Complainant PERKINS EASTMAN ARCHITECTS, D.P.C.'s ("PERKINS") second amended cross-complaint ("PERKINS 2ACC") for express indemnity and equitable indemnity.

PERKINS admits that it has not filed the certificate of merit required by Code of Civil Procedure section 411.35. Failure to do so is grounds for demurrer per Code of Civil Procedure section 411.35, subdivision (g). However, the statute does not forbid leave to amend to present a proper certificate of merit; accordingly, the court sustains GLUMAC's demurrer with leave to amend. (*Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360.)

The court addresses GLUMAC's other arguments with PERKINS's presumed amended pleading in mind, in the interests of judicial economy.

GLUMAC asserts that the indemnity claim is premature because PERKINS has not suffered damages yet. However, prospective claims for indemnity are approved practice. Our state Supreme Court has praised the practical advantages of indemnity cross-complaints as a method of making a complete determination of disputes among all parties in a single judicial proceeding. (*Valley Circles Estates v. VTN Consolidated, Inc.* (1983) 33 Cal.3d 604, 614.) The court recognizes that *Valley Circles Estates* spoke to equitable indemnity but the principles of judicial economy expressed and approved therein logically apply equally to claims of express indemnity.

GLUMAC argues that PERKINS has not alleged GLUMAC's negligence and so cannot assert express indemnity. PERKINS has two provisions in its contract with GLUMAC under which it can seek indemnity: the first lets it seek indemnity "to the same degree" as it owes others under the Prime Agreement and the second lets it seek indemnity for any claim rooted in GLUMAC's breach of contract or negligence. PERKINS can assert express indemnity under the first provision without needing to raise GLUMAC's negligence. PERKINS has also adequately alleged GLUMAC's negligence, construing the PERKINS 2ACC reasonably. PERKINS alleges that GLUMAC's work underpins purported design flaws for which Plaintiff PARADISE VALLEY ESTATES ("PVE") sues PERKINS and alleges that GLUMAC had something to do with the problems PVE alleges. (PERKINS 2ACC at ¶¶ 36-37.) This sufficiently states that GLUMAC's negligence contributed to the design flaws on which PVE sues.

An express agreement to indemnify displaces equitable indemnity. (*Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 628.) However, the PERKINS 2ACC states that GLUMAC rendered services for PERKINS until spring 2021 and then in June 2021 PERKINS assigned its contract with GLUMAC to PVE. (PERKINS 2ACC at ¶¶ 34-35.) PERKINS may plead express indemnity with regard to events occurring before assignment of the contract and equitable indemnity with regard to events occurring after assignment.

Conclusion. GLUMAC's demurrer is sustained with leave to amend due to PERKINS's failure to file the required certificate of merit. PERKINS is to file any amended pleading within ten days of the date of this order.

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